



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: Ali v REDHEAD, 2025 ONLTB 95788

Date: 2025-12-17

File Number: LTB-L-050095-25-RV

In the matter of: Main Floor, 180 ELMHURST DR Toronto
ON M9W2L1

Between: Sarfaraz Ali Landlord

And

CHRISTEL REDHEAD Tenants
JOENEL REDHEAD

Review Order

Sarfaraz Ali (the 'Landlord') applied for an order to terminate the tenancy and evict CHRISTEL REDHEAD and JOENEL REDHEAD (the 'Tenants') because the Tenants did not pay the rent that the Tenant owes.

This application was resolved by order LTB-L-050095-25 issued on October 8, 2025.

On October 17, 2025, the Tenants requested a review of the order.

The review request was heard by videoconference on November 17, 2025.

The Landlord and the Tenant Christel Redhead ('C.R') attended the hearing.

Determinations:

Review

1. I find that the Board made a serious error by applying the wrong legal test to determine when the payment of arrears should be calculated up to.

2. The Board determined that arrears should be calculated up to the date that the Landlord discovered that the rental unit was vacant. In making that determination the Board relied heavily on the Tenants' failure to notify the Landlord that they had vacated.
3. As the Landlord served a Notice to End Tenancy Early for Non-payment of Rent (N4 Notice) that asked the Tenants to vacate, arrears should only be calculated up to the date that the Tenants vacated. To determine when the Tenants vacated the Board should have considered the factors outlined in the Court of Appeal decision *1162994 Ontario Inc. v. Bakker*, 2004 CanLII 59995. The Court determined that possession of a rental unit refers to some form of control over that unit as demonstrated by factors such as access to, use of, or occupation of the unit. While a tenant failing to notify a landlord that they have vacated could be evidence that they are still in control of the rental unit, I find that it was a serious error to find that it was the determinative factor over the other evidence provided at the hearing regarding when the Tenants truly vacated.
4. While the order says that it calculates rent up until the date that the Tenants vacated, the reasoning in the order reveals that is not the case. The reasoning in the order appears to be more in line with section 88 of the *Residential Tenancies Act, 2006* ('the Act') which is used to determine arrears of rent when a tenant vacates without notice. That section is not applicable because the Landlord served a notice of termination asking the Tenants to leave.
5. For those reasons the review request was granted, and the application was reheard.

The Application

6. The Landlord served the Tenants with a valid N4 Notice. The Tenants did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
7. The Tenants were in possession of the rental unit on the date the application was filed.
8. For the following reasons I find that the Tenants vacated the rental unit on August 1, 2025.
9. I accept the Tenant C.R.'s testimony as credible that the Tenants vacated the rental unit on August 1, 2025. CR testified that all the Tenants' belongings were removed by that date. The Tenant admitted that a few items were left outside the rental unit in the yard and shed but testified those were not her items, they belonged to a friend who picked them up at an unknown date, and that she removed all the items within the rental unit. I also accept the Tenant's testimony that she did not return the key because she lost it.
10. There was one part of the Tenant C.R.'s testimony that arose potential concerns about her credibility. The Tenant testified that she attempted to call the Landlord to inform him that she moved out, but the Landlord did not answer. The Landlord produced phone records to show that he did not receive a phone call (DOC-6749239). However, I ultimately do not find this undermines the Tenant's credibility. I have insufficient evidence before me to establish

whether an unanswered call would show up on a phone bill. Additionally, the Tenant provided other evidence to bolster her credibility regarding when she vacated. The Tenant provided a copy of a new lease agreement for a different rental unit on August 1, 2025.

11. The Landlord relied on hearsay evidence of statements he heard from the downstairs tenants at the rental complex regarding when the Tenants' vacated. The downstairs tenants were not witnesses at the hearing, and did not subject themselves to cross examination. As such I give their statements little weight. I accept the direct testimony of the Tenant C.R who was at the hearing.
12. The Landlord pointed to order LTB-L-031954-24-RV issued on May 27, 2025, which terminated the tenancy as of August 31, 2025. That order contains a different application than the one before me. I do not find that order particularly relevant. The Tenants were entitled to vacate in accordance with the N4 notice.
13. While I accept that the Tenants did not inform the Landlord that they vacated nor did they return their keys, the question I must determine is when the Tenants vacated. After the Landlord served the N4 notice the Landlord is only entitled to rent up until the date that the Tenants vacated. That the Landlord did not attend the rental unit for all of August 2025 to check if the Tenants were still living there does not demonstrate that the Tenants were still in possession of the rental unit. I accept that the Tenants no longer had a key to the rental unit when they left. While the Tenants not telling the Landlord they had left is a relevant factor in the analysis, I ultimately find that the Tenants' ceased to be in control of the rental unit on August 1, 2025, when they removed their belongings from the rental unit, went to live somewhere else, and did not return. I do not find that the Tenants leaving some items outside the rental unit, that did not belong to them, demonstrates that they were still in control of the rental unit.
14. The lawful rent is \$2,600.00. It was due on the 1st day of each month.
15. There is no dispute between the parties that the Tenants paid no rent for the period between June 1, 2025, to August 1, 2025. Therefore, the rent arrears owing to August 1, 2025, are \$5,285.47 (2 months and 1 day of rent).
16. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
17. The Landlord collected a rent deposit of \$2,600.00 from the Tenants and this deposit is still being held by the Landlord. The rent deposit is applied to the arrears of rent because the tenancy terminated.
18. Interest on the rent deposit, in the amount of \$59.67 is owing to the Tenants for the period from September 1, 2024, to August 1, 2025

It is ordered that:

1. The request to review order LTB-L-050095-25 issued on October 8, 2025 is granted.
2. Order LTB-L-050095-25 issued on October 8, 2025, is canceled and replaced with the following:
3. The tenancy between the Landlord and the Tenants is terminated as of August 1, 2025, the date the Tenants moved out of the rental unit.
4. The Tenants shall pay to the Landlord \$2,811.80. This amount includes rent arrears owing up to the date the Tenants moved out of the rental unit and the cost of filing the application. The rent deposit and interest the Landlord owes on the rent deposit is deducted from the amount owing by the Tenants.
5. If the Tenants do not pay the Landlord the full amount owing on or before December 31, 2025, the Tenants will start to owe interest. This will be simple interest calculated from January 1, 2026, at 4.00% annually on the balance outstanding

December 17, 2025

Date Issued

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

Amanda Kovats

Member, Landlord and Tenant Board

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

